

Sudheer Pratap Panwar vs Usha (2023/Rjjd/015888) on 18 May, 2023

Author: Pushpendra Singh Bhati

Bench: Pushpendra Singh Bhati

[2023/RJJD/015888]

HIGH COURT OF JUDICATURE FOR RAJASTHAN AT
JODHPUR
S.B. Civil Writ Petition No. 13904/2022

Sudheer Pratap Panwar S/o Shri Faulal Panwar, Aged About 33 Years, Caste Nayak (Bheel), Resident Of Beawar, District Ajmer, At Present Resident Of 126, Pavan Vihar, B. R. Bidla School, Jodhpur.

----Petitioner

Versus

Usha W/o Shri Daulal Saarsr, Caste Nayak (Bheel), Resident Of 15-B, Shiv Shakti Nagar, Gali No. 2, Mahamandir, 3Rd Pole Ke Bahar, Jodhpur, At Present Resident Of Rishikesh Nagar, Chainpura, New Mandore Road, Jodhpur.

----Respondent

Connected With

S.B. Civil Writ Petition No. 13898/2022

Sudheer Pratap Panwar S/o Shri Faaulal Panwar, Aged About 33 Years, By Caste Nayak (Bheel), Resident Of Beawar, District Ajmer, Presently Residing At 126, Pawan Vihar, B.r. Birla School, Jodhpur.

----Petitioner

Versus

Usha D/o Shri Daaulal Saarsar, By Caste Nayak (Bheel), Resident Of 15-B, Shiv Shakti Nagar, Gali No. 02, Mahamandir, Outside 3Rd Pole, Jodhpur, Presently Residing At Rishikesh Nagar, Chainpura, New Mandore Road, Jodhpur.

----Respondent

For Petitioner(s) : Mr. Nagraj Goswami
For Respondent(s) : Mr. Awar Dan Ujjwal

HON'BLE DR. JUSTICE PUSHPENDRA SINGH BHATI

Order 18/05/2023

1. These writ petitions under Article 227 of the Constitution of India have been preferred against the

order dated 05.10.2021 [2023/RJJD/015888] (2 of 2) [CW-13904/2022] passed by learned Judge, Family Court No.2, Jodhpur in Civil Original Case No.771/2018 (234/2019) and Civil Original Case No.228/2019 (545/2018) whereby the learned Court below has rejected the application of the petitioner preferred under Order 7 Rule 11 CPC.

2. The impugned order dated 05.10.2021 has been passed by the learned Court below on the basis of the fact that the petitioner belongs to Scheduled Caste category. The petitioner's counsel is trying to create a dispute as to whether he was of Scheduled Caste or Scheduled Tribe category member.

3. In Sant Ladunath Nayak Sewa Sanstha Vs. Union of India : 2019(1) WLC (Raj.) 546, the Division Bench of this Hon'ble Court at Jaipur Bench has already adjudicated the controversy and declared that the Nayak Caste shall be in the Scheduled Caste.

4. Thus, the impugned order, treating the petitioner to be Scheduled Caste, while giving him liberty to move an application under Section 13 of the Hindu Marriage Act is sustained.

5. In view of the above, no interference in the present petitions is called for and the same are accordingly dismissed. All pending applications stand disposed of.

(DR.PUSHPENDRA SINGH BHATI), J.

27-Zeeshan Powered by TCPDF (www.tcpdf.org)